

Rajesh Kumar Gupta v. U.P.P.C.L.

High Court of Judicature at Allahabad · Division Bench · 28 August 2014 · Writ - C No. 45064 of 2014 · **Writ disposed of; SDO to consider the connection request under Clause 4.4 after notice to landlord and tenant, preferably within six weeks.**

HEADNOTE

On a challenge to denial of a new electricity connection amid a landlord–tenant dispute, the Division Bench disposed of the writ by directing the concerned officer to consider the petitioner's request in accordance with law and Clause 4.4 of the Electricity Supply Code, 2005, after putting both landlord and tenant to notice, preferably within six weeks. The Court did not grant the connection or decide whether an indemnity bond was a precondition.

FACTUAL SUMMARY

The petitioner challenged an order dated 30 June 2014 of the Sub Divisional Officer of the Electricity Department, alleging that he was wrongly denied an electricity connection because of a dispute between landlord and tenant. Counsel for the Department submitted that the connection could not be granted unless the petitioner executed an indemnity bond, and invited attention to Clause 4.4 of the Electricity Supply Code, 2005. Both sides were heard on 28 August 2014.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

new connection — indemnity bond / landlord-tenant

HOLDING

A writ challenging denial of an electricity connection in a landlord–tenant dispute is disposed of by directing the concerned officer to consider the petitioner's request in accordance with law and Clause 4.4 of the Electricity Supply Code, 2005, after putting the landlord and tenant to notice, preferably within six weeks; the Court does not itself grant the connection or decide the indemnity-bond issue. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER WAS ENTITLED TO A NEW CONNECTION WITHOUT EXECUTING AN INDEMNITY BOND, AND THE MERITS OF THE LANDLORD–TENANT DISPUTE

Writ disposed of with a direction to consider the request under Clause 4.4 after notice; no merits finding on the SDO order dated 30.6.2014. ¶ 1